

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #13	CCRB Case #: 202204834	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/04/2022 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/4/2023	Precinct: 62		
Date/Time CV Reported Sat, 07/23/2022 4:19 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 07/23/2022 4:19 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Marina Genin	18055	968435	062 PCT
2. PO Craig Mcgrath	26900	955165	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jaleesa Arrington	08342	968244	062 PCT
2. PO Giovany Diegue	03258	964489	062 PCT
3. SGT Ali Hammutoglu	03266	938636	062 PCT
4. PO Fawzi Algahiti	22791	952393	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Craig Mcgrath	Discourtesy: Police Officer Craig Mcgrath spoke discourteously to § 87(2)(b)	A . Substantiated
B . PO Craig Mcgrath	Abuse: Police Officer Craig Mcgrath threatened to arrest § 87(2)(b)	B . Substantiated
C . PO Marina Genin	Discourtesy: Police Officer Marina Genin spoke discourteously to § 87(2)(b)	C . Substantiated
D . PO Marina Genin	Abuse: Police Officer Marina Genin threatened to arrest § 87(2)(b)	D . Exonerated
E . PO Marina Genin	Abuse: Police Officer Marina Genin forcibly removed § 87(2)(b) to the hospital.	E . Exonerated
F . PO Craig Mcgrath	Abuse: Police Officer Craig Mcgrath forcibly removed § 87(2)(b) to the hospital.	F . Exonerated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On July 23, 2022, § 87(2)(b) called the CCRB and filed this complaint.

On June 4, 2022, at approximately 12:00 p.m., § 87(2)(b) had a physical dispute with one of his roommates, § 87(2)(b) at § 87(2)(b) in Brooklyn. Officers, including Police Officer Marina Genin and Police Officer Craig McGrath (both of the 62nd Precinct), responded after the roommate called 911. EMTs also responded to the apartment. PO Genin and a male EMT spoke with § 87(2)(b) in both English and Russian for nearly an hour. At one point, PO McGrath told § 87(2)(b) “I don’t give a shit about what you think about United States law” (**Allegation A, Discourtesy: Word, Substantiated**), and that “If we get called back again, you’re going to have to leave. You realize this, right? Whether it’s to the hospital or in handcuffs” (**Allegation B, Abuse of Authority: Threat of Arrest, Substantiated**). PO Genin said, “It’s fucking hot, excuse my language” (**Allegation C, Discourtesy: Word, Substantiated**). § 87(2)(b) called his building’s landlord and attempted to convince the landlord to evict his roommate and PO Genin told § 87(2)(b) that he could be arrested for illegal eviction (**Allegation D, Abuse of Authority: Threat of Arrest, Exonerated**). The male EMT ultimately determined § 87(2)(b) to be having a “psychological emergency” and directed him to be removed to the hospital (**Allegations E and F, Abuse of Authority: Forcible Removal to the Hospital, Exonerated**). PO Genin accompanied § 87(2)(b) to § 87(2)(b) Hospital.

§ 87(2)(g), § 87(4-b)

No arrests or summonses resulted from this incident.

The investigation received body-worn camera (BWC) footage from the following officers: Police Officer Fawzi Alaghiti, Police Officer Jaleesa Harrington, Police Officer Giovany Diegue, PO Genin, Sergeant Ali Hammutoglu, and PO McGrath (**BR 01-10**). The relevant aspects of this footage shall be discussed below.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Craig McGrath spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Craig McGrath threatened to arrest § 87(2)(b)

It is undisputed that officers responded to the location regarding a physical dispute between § 87(2)(b) and one of his roommates, § 87(2)(b). It is further undisputed that § 87(2)(b) was grieving the recent death of his longtime partner and that he had been drinking alcohol to cope with the loss.

In his CCRB interview (**BR 11**), § 87(2)(b) said that approximately 45-60 minutes after officers first arrived at his apartment, an officer told § 87(2)(b) that he had two choices – he could be arrested for assault or he could go to the hospital.

Per PO Genin’s BWC, she and a Russian-speaking male EMT converse with § 87(2)(b) in a mix of English and Russian. After speaking with him for a few minutes and a discussion with her supervisor, Sgt. Hammutoglu, PO Genin at the 28:55 timestamp confirms that the course of action is to prepare a harassment report and refrain from taking § 87(2)(b) to the hospital.

Per PO Genin’s BWC (**BR 03**), at the 34:20 timestamp, PO Genin fills out a complaint report for harassment. Meanwhile, PO McGrath and § 87(2)(b) argue. At the 34:43 timestamp, PO McGrath says, “The law and your grieving have nothing to do with each other.” § 87(2)(b) responds, “United States law is [inaudible]...” PO McGrath retorts, “I don’t give a shit about what you think about United States law but if we get...” § 87(2)(b) interjects, “Probably tomorrow I’ll be on a plane...” and PO McGrath interrupts, saying, “Why don’t you go today, then?” While PO Genin walks to hand § 87(2)(b) roommate his ID, PO McGrath says, “Listen, if we get called back again, you’re going to have to leave. You realize this, right? Whether it’s to the hospital or in handcuffs.”

In his CCRB interview (**BR 12**), PO McGrath said he never threatened to arrest § 87(2)(b). PO McGrath told § 87(2)(b) that if he was not willing to leave voluntarily, he would be handcuffed. PO McGrath never heard anyone tell § 87(2)(b) that he could either go to the hospital or be arrested. PO McGrath said no officer ever intended to arrest § 87(2)(b) because there was nothing to arrest § 87(2)(b) for – he had not committed any arrestable crimes. PO McGrath was trying to say, by mentioning handcuffs, that § 87(2)(b) had no choice about going to the hospital – once EMTs decide that he has to go, he must go.

PO McGrath admitted to saying, “I don’t give a shit what you think about American law.” In justifying his use of the word, “shit,” PO McGrath said, “If you can say it on television, it’s not discourteous, and it wasn’t said, ‘You’re a piece of shit,’ it was after him trying to delay the process of going to the hospital and asking us to throw his roommates out. And his very clear statement that he didn’t care what the law was, that he still wanted his roommates thrown out, that, after a certain point in time, there was no negotiating this.” PO McGrath said that, prior to his making this statement, the EMTs had determined that § 87(2)(b) had had to go to the hospital. PO McGrath said that everyone was frustrated at the situation at the time because the job had been going on for so long.

PO McGrath said that he told § 87(2)(b) “Why don’t you go back today?” following § 87(2)(b) saying that he would be on the next plane out tomorrow. PO McGrath justified saying this by noting in his interview, “What’s holding you back? This is a free country. You came here on your own; you’re free to go on your own.” PO McGrath did not intend to belittle § 87(2)(b) in making the statement.

Per Patrol Guide Procedure 200-02 (BR 13), the values of the NYPD include the pledge to “maintain a higher standard of integrity than is generally expected of others” and to “respect the dignity of each individual and render [their] services with courtesy and civility.”

Per DAO-DCT Disciplinary Case No. 2018-18951 (BR 14), profane remarks made during a stressful or chaotic situation may not constitute misconduct.

§ 87(2)(g) did not display any signs of physical aggression, was outnumbered by officers and undisputedly saddened by the recent passing of his long-term partner. § 87(2)(g)

It is recommended that **Allegation A** be **substantiated**.

§ 87(2)(g) Per BWC, PO McGrath told § 87(2)(b) that, if officers came back, he would have to leave either to the hospital or in handcuffs. § 87(2)(g)

it is recommended that **Allegation B** be **substantiated**.

Allegation (C) Discourtesy: Police Officer Marina Genin spoke discourteously to § 87(2)(b)

This allegation stems from PO Genin’s BWC (**BR 03**). At the 37:00 timestamp, PO Genin speaks with § 87(2)(b) in Russian. After speaking back and forth in Russian, PO Genin says,

“It’s fucking hot, excuse my language.” She then returns to speaking Russian.

Upon reviewing this BWC, PO Genin said in her interview (BR 27) that during this timeframe, she told § 87(2)(b) in Russian that he should leave the apartment for a couple days or come back, or go to the hospital, as both may be in his best interest. PO Genin used profanity – fucking – in this moment because she was rapport-building by noting that it was very hot in § 87(2)(b) apartment whereas the hospital would be air-conditioned. There was no other reason to use profanity. PO Genin said that she did not direct the profanity at § 87(2)(b).

Per Patrol Guide Procedure 200-02 (BR 13), the values of the NYPD include the pledge to “maintain a higher standard of integrity than is generally expected of others” and to “respect the dignity of each individual and render [their] services with courtesy and civility.”

Per DAO-DCT Disciplinary Case No. 2018-18951 (BR 14), profane remarks made during a stressful or chaotic situation may not constitute misconduct.

§ 87(2)(g) It is recommended that Allegation C be substantiated.

Allegation (D) Abuse of Authority: Police Officer Marina Genin threatened to arrest § 87(2)(b).

This allegation stems from PO Genin’s BWC (BR 03). At the 39:15 timestamp, § 87(2)(b) begins to speak with someone on the phone. Contextually, it seems that § 87(2)(b) is speaking to his landlord. § 87(2)(b) says, “As the owner of the main person, I demand you to throw [my roommate] out immediately.” PO Genin responds, “That’s landlord/tenant court. You can’t kick somebody out.” The male EMT, PO Genin, and PO McGrath assure the roommate that he will not be kicked out. § 87(2)(b) continues to speak on the phone. At the 40:55 timestamp, § 87(2)(b) says, “I want [the roommate] out of the house for 48 hours, please.” PO Genin and the male EMT tell § 87(2)(b) again that he cannot do this. At the 41:20 timestamp, PO Genin says, “You can’t kick him out. He’s been here over 30 days, sir. That’s illegal eviction. You could get arrested for illegally evicting somebody. I’m being honest with you.”

In her CCRB interview (BR 27), PO Genin said that she told § 87(2)(b) that he could be arrested as a statement of fact and that she did not intend to arrest § 87(2)(b) at the time of her making this statement.

Per New York City Administrative Code § 26-521 (BR 15), “it shall be unlawful for any person to evict or attempt to evict an occupant of a dwelling unit who has lawfully occupied the dwelling unit for thirty consecutive days or longer or who has entered into a lease with respect to such dwelling unit or has made a request for a lease for such dwelling unit pursuant to the hotel stabilization provisions of the rent stabilization law except to the extent permitted by law pursuant to a warrant of eviction or other order of a court of competent jurisdiction or a governmental vacate order by using or threatening the use of force to induce the occupant to vacate the dwelling unit... or engaging or threatening to engage in any other conduct which prevents or is intended to prevent such occupant from the lawful occupancy of such dwelling unit or to induce the occupant to vacate the dwelling unit...”

§ 87(2)(g)

It is recommended that Allegation D be exonerated.

Allegation (E) Abuse of Authority: Police Officer Marina Genin forcibly removed § 87(2)(b) to the hospital.

Allegation (F) Abuse of Authority: Police Officer Craig McGrath forcibly removed § 87(2)(b) to the hospital.

It is undisputed that EMTs removed § 87(2)(b) to § 87(2)(b) Hospital.

Per the 911 call and EVENT (BR 20-21), § 87(2)(b) roommate called 911 and told the operator that § 87(2)(b) had pushed him to the floor and was acting “crazy.” The roommate

noted he suffered pain to his right arm and there were no weapons involved.

The 911 dispatcher put the job over as an assault in progress and noted that the roommate had an injury to his right arm (BR 22). No additional information was broadcasted prior to officers arriving at the location.

For the first 40 minutes of officers being present at the location, neither the patrol supervisor nor the EMTs present deemed that § 87(2)(b) needed to go the hospital. Per PO Genin's BWC (BR 03) at the 22:30 timestamp, both EMTs tell the officers that § 87(2)(b) is allowed to grieve and be intoxicated in his apartment. Per PO Genin's BWC at the 28:55 timestamp, Sgt. Hammutoglu tells PO Genin to fill out a harassment report and to leave without taking § 87(2)(b) to the hospital. Through the first 40 minutes, officers and EMTs discover that § 87(2)(b) was grieving the loss of his long-term partner, that he had imbibed a quantity of alcohol, and had gotten into a dispute with his roommate. § 87(2)(b) through this timeframe, expressed his grief over the death of his partner, his desire for his roommate to get in trouble, decompensated while speaking with EMTs and officers, and called his landlord in an attempt to kick the roommate out of the apartment despite officers' and EMTs' entreaties for him to stop doing so.

At the 41:40 timestamp of PO Genin's BWC (BR 03), PO Genin speaks with the EMTs, saying, "Alright, what are we doing with him? Seriously. You guys are the medical professionals... you guys are the medical professionals; we have a harassment 61 done." The male EMT and female EMT both invite § 87(2)(b) to go to the hospital. The male EMT and § 87(2)(b) speak in Russian for about a minute. At the 43:15 timestamp, both PO Genin and the male EMT tell § 87(2)(b) "Nobody's arresting you. We're taking you to the hospital." § 87(2)(b) responds, "You're not going to take me against my will." The male EMT responds, "We can." The male EMT says at the 43:32 timestamp, "You're having a psychological emergency."

PO Genin ultimately travels with the EMTs and § 87(2)(b) to § 87(2)(b) Hospital.

PO Genin noted in the AIDED (BR 23) that § 87(2)(b) verbally threatened others, spoke of harming self or others, and was unable to care for himself. In the details section, PO Genin wrote, "At TPO, § 87(2)(b) was intoxicated and was grieving the loss of this husband. § 87(2)(b) did state he can't imagine life without his husband and did threaten his roommate. § 87(2)(b) was behaving irrational."

PO Genin prepared a complaint report for harassment regarding this incident (BR 24). She wrote in the narrative that § 87(2)(b) "did shove and harass" his roommate. The roommate, in turn, felt "alarmed and annoyed" but had no injuries.

The investigation was unable to retrieve medical release forms from § 87(2)(b) to request the associated medical records regarding this incident.

This allegation is pleaded to both PO Genin and PO McGrath because they were the officers present when the male EMT determined § 87(2)(b) to be having a psychological emergency.

Per Patrol Guide Procedure 216-01 (BR 16), officers shall cooperate with ambulance/hospital personnel in every reasonable manner.

§ 87(2)(g)

It is recommended that **Allegations E and F be exonerated.**

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
[REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Genin has been a member of service for two years and has been a subject in a single CCRB complaint and allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- PO McGrath has been a member of service for nine years and has been a subject in 14 CCRB complaints and 43 allegations, seven of which were substantiated or cited.
 - 202000595 involved a substantiated allegation of discourtesy – word. The Board recommended Command Discipline A and the NYPD docked PO McGrath a single vacation day.
 - § 87(2)(g), § 87(4-b) [REDACTED]
 - 202003706 involved a substantiated allegation of force – vehicle. The Board recommended charges and the NYPD docked PO McGrath ten vacation days.
 - 202004332 involved a substantiated allegation of failure to provide RTKA card § 87(2)(g), § 87(4-b) [REDACTED]. The Board recommended formalized training and the NYPD has yet to impose discipline.
 - § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of September 14, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 18).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: 10

Investigator: Ethan C. Waterman Inv. Ethan Waterman 10/11/2022
Signature Print Title & Name Date

Squad Leader: Maura R. Roche IM Maura R. Roche 10/12/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date